

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, AUGUST 13, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**MONTEZUMA LODGE NO. 172, I.O.O.F. OF CALIFORNIA v. LEWIS, et al.
Case No. cu23-05966**

Hearing on Determination of Attorneys Fees and Costs

TENTATIVE RULING

Plaintiff was given the opportunity to respond to the amount of fees and costs claimed to have been incurred on the since-vacated motion for judgment on the pleadings. However, the opposition by Plaintiff did not challenge those amounts. Thus, the court confirms that Plaintiff must pay Defendant the amount of \$9,375.00, within 30 days of this ruling, or the court's July 9 order withdrawing the deemed admissions will be vacated, and Defendant's motion for judgment on the pleadings reset for hearing on an expedited basis.

Plaintiff's opposition referenced a possible claim by Defendant that the court's July 9 ruling mistakenly vacated the motion for judgment on the pleadings. This was not a mistake on the part of the court, and the time for challenging its ruling has long passed. C.C.P. §1008(a). Should Defendant make any request to reset hearing for that vacated motion for any reason other than Plaintiff's failure to timely pay these sanctions, the court may reconsider this order for sanctions and reduce if not vacate entirely the amount ordered now.
